

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

1. Contracting Activity: Department of Veterans Affairs (VA)
Office of Procurement, Acquisition, and Logistics
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724

2. Description of Action: The proposed action is for a sole source Firm-Fixed Price (FFP) Task Order (TO) issued under the Transformation Twenty-One Total Technology Next Generation (T4NG) Contract number VA118-16-D-1028 with Veterans EZ Info (referred to herein as VetsEZ) for Prescription Drug Monitoring Program (PDMP) Bamboo Health Prescription Monitoring Program (PMP) Gateway SaaS licenses and sustainment support services for VA, Office of Information & Technology (OIT) Enterprise Portfolio Management Division, Health Portfolio, Clinical Services.

3. Description of the Supplies or Services: The proposed action seeks to provide sustainment and a minimum of 100,000 SaaS licenses for VHA critical PDMP solutions. VA requires a solution that is interoperable and compatible with VA's Integrated PDMP Solution and delivers the gateway management of the connection/sharing with the individual state PDMPs. The Integrated PDMP solution enables authorized controlled substance prescribers, pharmacists, and their delegates to access crucial Veteran medication information from multiple participating PDMP databases with the click of a button in the Veteran's electronic health record. The PDMP solution depends on a backend SaaS provider with PMP Gateway. The original equipment manufacturer is Bamboo Health (formerly Apriss). Bamboo Health PMP Gateway connects the VA's Veterans Data Integration and Federation (VDIF) middleware, Veterans Health information System and Technology Architecture (VistA) electronic health record, and Computerized Patient Record System (CPRS) Graphical User Interface (GUI) to the existing National Association of Boards of Pharmacy (NABP) PMP InterConnect PMP, a data sharing platform utilized by a network of participating state PDMPs. In addition to the SaaS licenses, the required sustainment support services include maintenance, technical support, and enhancement releases. Security activities, such as system monitoring, investigation of security scan findings, and maintaining security documentation necessary to preserve the Authority to Operate (ATO), are also part of the sustainment support services.

The period of performance for this proposed action shall consist of a 12-month base period with two (2) 12-month option periods, and two optional tasks. The total estimated value of the proposed action is [REDACTED] (inclusive of options and optional tasks).

4. Statutory Authority: The following requirement is being justified and approved as an exception to fair opportunity under the statutory authority of Section 41 U.S.C. 4106(c)(2) as implemented by Federal Acquisition Regulation (FAR) Overhaul VA Deviation 16.507-6(b)(2), entitled "Only one awardee is capable of providing the

supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.”

5. Rationale Supporting Use of Authority Cited Above: The proposed source is VetsEZ, 1901 1st Avenue, Suite 102, San Diego, CA 92101. No other source, other than VetsEZ, can meet the Government’s requirements as documented below.

Due to a teaming agreement VetsEZ with Bamboo Health, no other vendor will have access to the SaaS solution or PMP Gateway Enterprise Licenses as well as providing any necessary enhancements required for PDMP, thereby requiring a complete redevelopment effort. No other SaaS solution can meet VA interoperability or compatibility requirements associated with VA’s Integrated PDMP Solution other than Bamboo Health PMP Gateway. Specifically, the VDIF middleware, VistA Electronic Health Record (EHR), and CPRS GUI have each undergone significant development and configuration to only work with the Bamboo Health PMP Gateway product. If any other SaaS product was to be utilized, it will not be able to exchange data between the three different VA systems and the participating PDMPs, because those systems are only configured to work with Bamboo Health PMP Gateway for data sharing across PMP Interconnect. Additionally, dashboards have been developed to support monitoring and tracking of critical data and analytics associated with the Integrated PDMP Solution. These would not work with another product and would need to be rebuilt. The VA Integrated PDMP Solution, including the dashboards, are built solely around Bamboo Health PMP Gateway and NABP PMP Interconnect products, processes, and ecosystems. If a different SaaS product was utilized, this would require significant reconfiguration changes, code redevelopment, and testing for each of the aforementioned products: VDIF, VistA, CPRS, and associated dashboards. VA estimates that this extensive redevelopment and reconfiguration effort would result in 1 year and \$8.5 million in duplicated costs that would not be recovered through competition. These estimates are based on similar redevelopment and reconfiguration efforts. In addition to development duplicated costs and time, prior/current data would require remapping to new product data definitions to support functionality and continuous reporting/analytics capabilities from system launch through future state as well as development of dashboards and reporting tools. In addition to vendor costs, a new solution would require VA staff to recreate process, education materials for the field, resource training, and so forth. Furthermore, selection of a new product would delay VA’s ability to immediately address necessary enhancements contained in the backlog.

Bamboo Health PMP Gateway is fundamental to integrating PDMP query functionality into both legacy and Oracle Health EHR settings. The underlying databases in both current and future state EHRs communicate through their respective middleware software to VA PMP Gateway which then sends the request through PMP InterConnect to be participating state, regional, and territory PDMPs. The query response passes any results back through the VA PMP Gateway to the appropriate EHR, displaying them in a standardized PDMP Report which is intended to support real-time clinical care decisions. Additionally, the use of Bamboo Health PMP Gateway in both systems is

critical as we continue to address our ongoing efforts to integrate the remaining individual state PDMP. Therefore, maintaining the connection to VA PMP Gateway will continue to ensure seamless interoperability regarding PDMP's form, function, and overall user experience across the current VistA/CPRS and future state (Millennium) EHRs.

In addition, Bamboo Health PMP Gateway was issued an ATO by the VA and is currently under PMO Review for FedRAMP Authorization. Obtaining a security ATO for a replacement software package could take an additional 12-18 months or longer for FedRAMP review. The ATO security process is in place for the federal government agency to determine whether to grant a particular information system authorization to operate for a certain period of time by evaluating if the risk of security controls can be accepted.

This service is critical to the extensive coordinated effort between the VA and the vendor to broker sharing agreements with states, territories, and municipalities. The VA PDMP Integrated Solution operates on a sharing structure with additional states that a competitor would need to re-build from the ground up. Thus, introducing the risk of a significant and lengthy interruption of service to VA staff.

Also, PMP Gateway is the sole product capable of connecting the VA to the NABP PMP InterConnect, currently enabling access to 53 out of 54 PDMP databases. This solution plays a pivotal role in the VA's commitment to becoming a High Reliability Organization, addressing the ongoing US opioid epidemic, and equipping care providers with comprehensive patient information to enhance patient safety.

Additionally, only VetsEz can provide sustainment services since any source needs access to Bamboo Health proprietary code to ensure the services are properly configured. Market research revealed that Vets EZ, is the sole authorized reseller capable of providing these services. This determination was further validated through direct communication with Bamboo Health, which confirmed that there are no other authorized resellers and that Vets EZ is the only entity permitted to provide sustainment support for this solution.

Failure to utilize Bamboo Health PMP Gateway product would significantly and adversely affect the quality of care that the VA can provide to veterans. PDMPs serve as a vital risk mitigation tool for prescribing controlled substances, such as opioids, stimulants, benzodiazepines, and more. Since solution launch in November 2020, approximately 18 million PDMP queries have been executed through the Integrated PDMP Solution.. Finally, VA PDMP Integrated Solution plays a pivotal role in VA's commitment to becoming a High Reliability Organization, addressing the ongoing US opioid epidemic, and equipping care providers with comprehensive patient information to enhance patient safety. Before the implementation of the VA PDMP Integrated Solution, clinicians had to access vital patient information by logging into one or more state portals via the internet. This manual and decentralized process was not only time-

consuming but also prone to human error. Simply put, VA staff would have to return to the process that they had to follow before the VA PDMP Integrated Solution was deployed. Therefore, the PDMP integrated solution benefits all veterans, including those who require PDMP checks and those whose clinical decisions are enhanced by access to this valuable information. Selection of a new SaaS product would force our clinicians to return to manual processes and could impact patient safety, contribute to increased provider workload, and negatively affect trust in VA.

6. Efforts to Obtain Competition: Market research was conducted, details of which are in Section 8 of this justification. This effort did not yield any additional sources that could meet the Government's requirements. There is no competition anticipated for this acquisition. In accordance with FAR Overhaul VA Deviation 16.507-6(f) this justification will be made publicly available within 14 days of award.

7. Actions to Increase Competition: The Government will continue to conduct market research to ascertain whether there are changes in the marketplace that would enable future actions to be competed.

8. Market Research: The Government's technical experts conducted market research between July and November 2025 to ascertain if any other SaaS solution can meet VA's needs. VA technical experts reviewed SaaS solutions and services from RxCheck, LogiCoy, Helix Health Solutions, Leap Orbit, and CyncHealth PDMP. Based on reviews the Government's technical experts determined that none of these SaaS Solutions can meet the Government's interoperability and compatibility requirements that were previously addressed above in this justification. RxCheck, LogiCoy, Helix Health Solutions, CynHealth, and Leap Orbit RxGov PDMP cannot meet the requirements because the downstream products (eg: VDIF, VistA, CPRS, and associated dashboards) have been reconfigured, coded for redevelopment, and end-to-end tested. Switching to a new product solution would result in substantial time, cost, and risk. These technical modifications for a new solution would necessitate significant financial and schedule impacts for VHA's critical PDMP solution which if impeded could lead clinicians to return to manual processes and would degrade patient safety.

Additional market research was conducted in December 2025 by Government technical experts by posting a draft Performance Work Statement (PWS) issued under Request for Information (RFI) number 36C10B26Q0103 to Contract Opportunities at SAM.gov. This RFI sought sources to provide Bamboo Health PMP Gateway SaaS licenses and sustainment support services that could meet VA's needs. The RFI yielded three (3) responses to include two large businesses: DreamCatchers Consulting, LLC and Veterans EZ Info, Inc; and one Service-Disabled Veteran-Owned Small Business (SDVOSB): Innovative Concepts, LLC. On January 5, 2026, the RFI responses were received by VA subject matter experts (SME). All of the capability statements were reviewed by SMEs and only one was determined to be capable of performing the effort. The one capable vendor is Veterans EZ Info, Inc (VetsEZ), a large business. Based on the market research, it was determined that only VetsEZ can meet all of the Government's requirements. Therefore, this action cannot be set-aside for SDVOSB,

VOSB, or any other socioeconomic group. On February 2, 2026, the Government contacted the above vendors that responded to the RFI and advised them that due to the market research results, the VA intends to proceed with a sole source acquisition strategy. To date, no responses or objections to this notice have been received.

9. Other Facts: None

10. Technical and Requirements Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price to the Government for this contract action will be fair and will represent the best value to the Government consistent with FAR 16.505(b)(2)(ii)(B)(5). Further price analysis, to include an analysis of proposed level of effort and labor prices, will be conducted and subsequent negotiations held as necessary.

12. Procuring Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

13. Office of General Counsel (OGC) Review: I have reviewed this document and find it legally sufficient, based on the representations set forth in the documents and, if any, attachments. The approval is an independently supported decision not wholly reliant on the legal sufficiency determination.

Approval

In my role as procuring activity Advocate for Competition, based on the foregoing justification, I hereby approve the acquisition of Bamboo Health Gateway SaaS and sustainment services on an other than fair opportunity basis pursuant to the authority cited in Section 4 above, subject to availability of funds, and provided that the property and services herein described have otherwise been authorized for acquisition.

